

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.

5. S-CV-0048414 MOORE, CHARLES v. SASENBACH, ELIZABETH

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion to Serve Defendant Richard Paul Gallagher Jr. and Defendant Gregory C. Sassenbach by Publication

Plaintiff moves for the court to authorize service on defendants Richard Paul Gallagher Jr. and Gregory C. Sassenbach by publication pursuant to Code of Civil Procedure section 415.50. However, plaintiff does not present sufficient evidence that these defendants cannot be served in another manner specified in the article—specifically, by mailing and acknowledgement pursuant to Code of Civil Procedure section 415.30. Accordingly, plaintiff's motion is denied without prejudice.

6. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CENTER

Defendant CPT Creekside Town Center, LLC's and Vestar Properties, Inc.'s Motion for Order Allowing Filing of Amended Cross-Complaint

Defendants/cross-complainants CPT Creekside Town Center, LLC and Vestar Properties, Inc.'s motion for order allowing filing of amended cross-complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Defendants/cross-complainants shall file and serve the first amended cross-complaint attached to the declaration of Edward Gordon on or before **May 7, 2026.**

Defendant Professional Security Consultant Motion for Leave to File Cross-Complaint

Defendant's motion for leave to file cross-complaint is continued to **May 14, 2026, at 8:30 a.m. in Department 3.** Defendant shall file a supplemental declaration on or before **May 7, 2026**, that attaches as an exhibit the proposed cross-complaint for the court's review.

Defendant Barnes & Noble Booksellers, Inc.'s Motion for Summary Judgment

Plaintiff's request to continue the motion for summary judgment pursuant to Code of Civil Procedure section 437c, subdivision (h) is granted in light of the outstanding discovery.

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The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select a mutually agreed upon date for the motion for summary judgment.

Appearances of the parties are required at the hearing.

7. S-CV-0051015 COOPER, AMANDA v. NEW PRIME

The mediation status conference is dropped from calendar in light of the parties' joint mediation status conference statement filed with the court on April 24, 2026.

8. S-CV-0051302 HAPAI, DEANNA v. PLACER COUNTY ANIMAL SVS.

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Plaintiffs' Motion for Leave to File First Amended Complaint

Plaintiffs motion for leave to file a first amended complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Plaintiffs shall file and serve the first amended complaint attached to the declaration of Brett E. Rosenthal on or before **May 7, 2026.**

If oral argument is requested with respect to continuing the trial and related dates or the motion for summary judgment/adjudication hearing date, the parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon dates.

9. S-CV-0052886 FOXX, SPENCER v. JEW, BRIAN

The motion to compel independent neuropsychological examination of plaintiff is dropped from calendar at the request of the parties in light of the same motion being scheduled to be heard on June 12, 2026.

The case management conference is dropped from calendar in light of the court granting the parties' stipulation to continue trial.

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